

<COMPANY REDACTED> DATA PROCESSING AGREEMENT
CONTROLLER TO PROCESSOR SPECIFIC TERMS AND CONDITIONS

1. Privacy and Data Protection.

This Data Processing Agreement (“**Data Processing Agreement**”) supplements the Master Supplier Agreement or any other agreement (the “**Agreement**”) between <COMPANY REDACTED> and Supplier and governs Supplier’s Processing of <COMPANY REDACTED> Personal Data. This Data Processing Agreement is intended to satisfy legal requirements under Privacy and Data Protection Law. If Supplier or any Supplier Personnel receives, has access to or otherwise Processes Personal Data or U.S. “sensitive personal data” as defined in and in scope of the U.S. DSP (defined below), Supplier shall comply with the requirements of this Data Processing Agreement.

The terms used in this Data Processing Agreement have the meaning set forth in this Data Processing Agreement. Capitalized terms not otherwise defined herein have the meaning given to them in the Agreement. Except as modified below, the terms of the Agreement remain in full force and effect. Addendum A1, Appendix 1 and Appendix 2 form an integral part of this Data Processing Agreement.

2. Definitions.

In this Data Processing Agreement, the following definitions apply:

“**Business Purpose**” means the use of Personal Data for <COMPANY REDACTED> or Supplier’s operational purposes, or other notified purposes as agreed under this Agreement or specified in the SoW, provided that the use of Personal Data is reasonably necessary and proportionate to achieve the operational purpose for which the Personal Data was collected or processed or for another operational purpose that is compatible with the context in which the Personal Data was collected.

“**Data Protection Rights**” means all rights granted to individuals under the applicable Privacy and Data Protection Law, including but not limited to the right to know, the right of access, reproduction, supplement, rectification, or erasure to or of Personal Data, the right to raise complaints, the rights relating to data portability, restriction on Processing, and objection to the Processing (including the right to withdraw consent) and the rights relating to automated decision-making.

“**Europe**” means the European Economic Area, Switzerland, Monaco and the United Kingdom.

“**EU GDPR**” means the EU General Data Protection Regulation 2016/679 (as amended and replaced from time to time).

“**Government Body**” means (1) the government of a country or of a political subdivision of a country, (2) an instrumentality of any such government, (3) any other individual, entity, or organization authorized by Law to perform any executive, legislative, judicial, regulatory, administrative, military, or police functions of any such government, and (4) an intergovernmental organization.

“**Government Agency**” means any public and quasi-public authority that may have jurisdiction over <COMPANY REDACTED> or Supplier to request for Personal Data.

“**Law**” means one or more laws, statutes, regulations, rules, executive orders, conventions, and other legally binding official releases of or by any Government Body, in each case as then in effect in the territory where the obligations under this Agreement and the applicable SOWs are being carried out.

“**Personal Data**” or “**Personal Information**” (which may be used interchangeably in this Agreement) means any information relating to an identified or identifiable individual, whether directly or indirectly identifiable, including but not limited to contact information, demographic information, passport number, Social Security number or other national identification number, bank account information, Primary Account Number and authentication information (e.g. identification codes, passwords) or as defined under the applicable Privacy and Data Protection Law.

“**Personal Data Breach**” means a breach of security leading to the accidental or unlawful destruction, loss, alteration, unauthorized disclosure of, access to, or other unauthorized Processing of Personal Data transmitted, stored, or otherwise Processed or as defined under the applicable Privacy and Data Protection Law.

“Pre-2021 Standard Clauses” or “Pre-2021 SCCs” means

- (i) the standard contractual clauses for the transfer of personal data to data processors established in third countries adopted by the European Commission decision of 5 February 2010, published under document number © (2010) 593 2010/87/EU;
- (ii) the standard contractual clauses for the transfer of personal data to third countries adopted by the European Commission decision of 15 June 2001, published under document number © (2001) 1539; and
- (iii) the standard contractual clauses for the transfer of personal data to third countries adopted by the European Commission decision of 27 December 2004, published under document number © (2004) 5271 (as applicable)

“Privacy and Data Protection Law” means any Law, statute, declaration, decree, legislation, enactment, order, ordinance, guidelines, regulation, rule, circular, national, local or industry standard (as amended and replaced from time to time) which relates to the protection of individuals with regards to the Processing of Personal Data to which the Parties are subject, including but not limited to (1) EU General Data Protection Regulation 2016/679 (as amended and replaced from time to time) and the e-Privacy Directive 2002/58/EC (as amended by Directive 2009/136/EC, and as amended and replaced from time to time) and their respective national implementing legislations (as amended and replaced from time to time); the Swiss Federal Data Protection Act and its implementing ordinances (as amended and replaced from time to time); the Monaco Data Protection Act (as amended and replaced from time to time); the UK Data Protection Law (as amended and replaced from time to time) and any other data protection law of the European Union the European Economic Area (EEA) (together **“EU Data Protection Law”**); (2) collectively, all U.S. state privacy laws and their implementing regulations, as amended or superseded from time to time, that apply generally to the Processing of individuals’ Personal Data, including but not limited to the California Consumer Privacy Act of 2018 (“CCPA”) as amended by the California Privacy Rights Act of 2020 and its implementing regulations (“CPRA”); (3) Executive Order 14117 and rules issues thereunder, including 28 C.F.R. Part 202 (the “U.S. DSP”), as amended from time to time (4) the U.S. Gramm-Leach-Bliley Act; (5) the Brazil General Data Protection Act (Federal Law n. 13.709/2018), or “Brazil GDPR” or “LGPD”; (6) the South Africa Protection of Personal Information Act; (7) the Personal Information Protection Law of the PRC and other PRC Laws relating to privacy and protection of Personal Information; (8) Argentina Personal Data Protection Act; (9) Kingdom of Saudi Arabia Personal Data Protection Law (amended 2023) and its Implementing Regulations; (10) Nigeria Data Protection Act 2023 and its subsidiary regulations and guidelines; (11) Turkey Law on the Protection Of Personal Data (DPL) No. 6698 and its regulations and successors; (12) Canadian federal and provincial laws governing the processing of Personal Information, (13) Thailand’s Personal Data Protection Act B.E. 2562 (2019) and its relevant subordinate regulations; (14) Japan’s Act on the Protection of Personal Information; and including the Personal Information Protection and Electronic Documents Act and substantially similar provincial laws; Laws regulating unsolicited email, telephone, and text message communications; security breach notification Laws; Laws imposing minimum security requirements; Laws requiring the secure disposal of records containing certain Personal Data; Laws governing the portability and/or cross-border transfer of Personal Data; and all other similar international, federal, state, national, provincial, and local requirements, in each case, as applicable and as updated, amended or replaced from time to time

“Process” or “Processing” or “Processing of Personal Data” means any operation or set of operations which is performed on Personal Data or on sets of Personal Data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction or as defined under the applicable Privacy and Data Protection Law.

“Sensitive Data” (or “Sensitive Personal Data”, or “Sensitive Personal Information”), which may be used interchangeably in this Agreement) means any Personal Data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, or trade union membership, genetic data, biometric data, data concerning health or data concerning a natural person’s sex life or sexual orientation, as well as any other type of data that will be considered to be sensitive according to any Privacy and Data Protection Law as applicable.

“Sub-Processor” means the person (whether a natural person, a legal entity or any other organization) engaged by Supplier or any further sub-contractor to Process Personal Data on behalf of and under the instructions of <COMPANY REDACTED>.

“UK Data Protection Law” means (i) the Data Protection Act 2018; (ii) the means the UK General Data Protection Regulation, amended by the UK Data Protection Act 2018, and as it may be amended from time to time and the Data Protection, Privacy and Electronic Communications (Amendments etc.) (EU Exit) Regulations 2019 and 2020 (‘UK GDPR’) as relevant; and (iii) the e-Privacy Directive 2002/58/EC (as amended by Directive 2009/136/EC) as transposed into UK national law.

“UK Standard Contractual Clauses” or **“UK SCCs”** means the UK International Data Transfer Addendum to the EU Commission Standard Contractual Clauses, issued under Section 119A of the Data Protection Act 2018 by the Information Commissioner and laid before Parliament on 2 February 2022 in force 21 March 2022.

“EU SCCs” means in respect of Personal Data to which the EU GDPR was applicable prior to its processing by Supplier as Processor, the standard contractual clauses for the transfer of personal data to third countries adopted by the European Commission under Commission Implementing Decision (EU) 2021/914 including the text from the modules of such clauses as specified in this Data Processing Agreement.

The terms **“Controller,” “Data Subject,” “Processor,”** and **“Supervisory Authority”** shall have the meanings given to them under EU Data Protection Law or as defined under the applicable Privacy and Data Protection Law.

3. **General Privacy and Data Protection.**

3.1. **Scope.**

All the obligations in this Data Processing Agreement apply to each Party without regard to the residency or location (permanent or otherwise) of any individual to whom any Personal Data relates, the location of a Party’s operations, the extent to which it has targeted a particular geographic regions or jurisdictions, or any other factors.

3.2. **Compliance with Privacy and Data Protection Law.**

Both Parties represent and warrant that they will comply with Privacy and Data Protection Law when Processing Personal Data in the context of the Services, and that they will perform their obligations under this Data Processing Agreement in compliance with Privacy and Data Protection Law and, particularly: (i) that they will provide the level of privacy protection required by Privacy and Data Protection Law, and (i) where applicable, further represents and warrants that it understands and will comply with this Data Processing Agreement.

3.3. **Roles of the Parties.**

The Parties agree that <COMPANY REDACTED> is a Business and/or Controller (or similar status that determines the purposes and means of Processing under applicable Privacy and Data Protection Law) or Processor acting on behalf of <COMPANY REDACTED>’s customers who act as Controllers of Personal Data Processed under this Data Processing Agreement, and Supplier is a Service Provider and/or Processor (or other similar status acting on behalf of <COMPANY REDACTED> under applicable Privacy and Data Protection Law), and/or as Sub-Processor of <COMPANY REDACTED>’s customers for the Processing of Personal Data for the purpose of providing the Services specified in the Agreement and as implemented by each individual Statement of Work where applicable. Supplier must only Process Personal Data on <COMPANY REDACTED>’s behalf and instructions, or of <COMPANY REDACTED>’s customers, for a Business Purpose as strictly necessary to provide the Services specified in the Agreement. <COMPANY REDACTED>, or the customers on whose behalf <COMPANY REDACTED> may act, have the sole and exclusive authority to determine the purposes and means of the Processing of Personal Data that are disclosed to Supplier. Supplier is prohibited from Processing Personal Data for any other purpose.

3.4. **Instructions.**

3.4.1 <COMPANY REDACTED>’s instructions are documented in Annex 1 of Addendum A1 of the Agreement and any applicable SOW(s). <COMPANY REDACTED> may issue additional instructions to Supplier as it deems necessary to comply with Privacy and Data Protection Law. Supplier must notify <COMPANY REDACTED> (1) when any law or legal requirement prevents Supplier (a) from fulfilling its obligations under this Data Processing Agreement or Privacy and Data Protection Law, and (b) from complying with the instructions received from <COMPANY REDACTED> or (2) if the Supplier determines it can no longer fulfil its obligations under this Agreement or Privacy and Data Protection Law. Upon receiving notice from Supplier, the Parties shall work together to come to a mutual agreement to implement an agreeable solution for the purpose of ensuring compliance. In the meantime, <COMPANY REDACTED> may, in part or in whole, as applicable, direct Supplier to take reasonable and appropriate steps to stop and remediate unauthorized Processing, including suspending the Processing of Personal Data by Supplier, until such event resulting in non-compliance has ceased or has been rectified. If Supplier fails to correct the non-compliance or Parties cannot come to a mutual solution to rectify the non-compliance, <COMPANY REDACTED> is entitled to terminate any further Personal Data Processing and the Agreement, if doing so is required to comply with Privacy and Data Protection Law.

3.4.2 Except as expressly permitted by Privacy and Data Protection Law and where applicable, Supplier is prohibited from (i) Processing including retaining, using, or disclosing Personal Data outside of the direct business relationship between the Parties, and (ii) combining Personal Data with Personal Data obtained from, or on behalf of, sources other than <COMPANY